

**NON COMPETITIVE MEMORANDUM
FOR SIMPLIFIED ACQUISITION ACTIONS**

1. **REQUIRING AGENCY** – DOJ/Bureau of Prisons, FCI Miami FL

2. **NATURE/DESCRIPTION OF ACTION BEING APPROVED** – Urgency

3. **DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS**

The agency urgently requires the replacement of HVAC Units at FCI Miami. Currently there are (4) four Trane split 20 Ton AC which are in the Housing Unit "C" & "D" of the institution. These units provide air conditioning for the inmate population which is currently inoperable due to mechanical issues which are beyond repair. The government requires the emergency purchase of (4) four each 20 tons split systems to resolve this urgent matter.

4. **IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION** – 41 U.S.C. 253; 41 U.S.C. 1901(e)

5. **DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:**

This situation has become urgent and will be detrimental to the government if these AC units are not replaced. Life safety is a factor as we try to maintain livable conditions within the housing units during the summer months arriving. Tropic Supply, Inc is active in SAM UEI # K52GCGFKBJS9 and can provide these units with limited down time on delivery of supply. This issue is urgent and has been ongoing for 2 months. Due to no airflow available in living and program areas of this institution. The current heat index in at 90 degrees with spring and summer weather approaching. Currently this area of the institution is only being cooled by inadequate portable Air Condition units. There are currently elderly inmates and inmates with health conditions housed in these areas. The selected contractor Tropic Supply, Inc., can have the new units delivered to the institution in 5 days of award. It is in the government best interest to award this requirement as a single source, urgent and compelling. Awarded 04/13/26 on BPO 15BBNF26P00000029 for \$103,264.60

CONTRACTING OFFICER'S CERTIFICATION

I certify this justification is accurate and complete to the best of my knowledge and belief.

Contracting Officer
